

Rent Revenge: The Roommate Debt Small Claims Playbook

A Complete Guide to Getting Your Money Back When Your Roommate Decides Fairness Doesn't Apply



Introduction

You did everything right. You split rent evenly, you kept your nose clean, and you assumed the adult in your apartment would act like one. Then your roommate's relationship imploded, she decided her ex-boyfriend was the devil, and now you—a third party with zero stake in the drama—are stuck holding the bag.

She owes you money. She has the money. She is choosing spite over basic fairness, and because she is technically a tenant with partial rights, there's nothing you can just do about it. Meanwhile her stuff is still on your couch.

This is a situation that millions of people face every year. Roommate disputes over money are one of the most common sources of interpersonal conflict, and they are uniquely infuriating because the person causing the problem doesn't seem to care that

they're causing it. You can't reason with someone who's decided that being right matters more than being fair. You can't appeal to their better nature because they're not using it.

But here's what you can do: you can use the system.

Small claims court exists for exactly this situation. It's a pathway designed for people who won't pay unless the law makes them. No lawyers required. No formal legal training necessary. Just a process, a few forms, and the satisfaction of having a judge agree with you.

This guide walks you through the complete, non-lawyer path from "she won't pay" to "she paid." You'll document your case, file your claim, present it to a judge, win a judgment, and execute it. Every step. Real documents. Real timelines. Real outcomes.

By the time you're done reading, you'll know exactly where you stand, what your claim is worth, whether small claims court makes sense for your situation, and what to do at every stage if you decide to move forward.

What you'll get out of this guide:

- A clear picture of what you're actually owed (and whether you can prove it)
- A demand letter that creates a legal record and starts the official clock
- A realistic assessment of whether filing is worth your time and energy
- A complete evidence file that would hold up in any hearing
- Step-by-step filing instructions tailored to your state's process
- A judgment enforcement strategy that accounts for real-world obstacles

Let's get to work.



Part 1: Situation Audit & Demand Letter

Before you file anything, you need to know what you're actually claiming. This part walks you through the essential first steps: calculating your damages with precision, documenting everything properly, and sending a formal demand letter that starts the legal clock.



Chapter 1: Calculate What You're Actually Owed

The first question you need to answer is simple: how much money are we actually talking about?

Not an estimate. Not a ballpark. A precise, defensible number with documentation to back it up.

Why does this matter? Because in small claims court, you present your damages as a line-item breakdown. If you walk in saying "she owes me around \$2,000," the judge will ask you to itemize it. Vague claims lose. Specific, documented claims win.

So let's build your Debt Audit Worksheet.

Step 1: List Every Category of Money Owed

Start by listing every type of expense where you covered more than your fair share. Common categories include:

- **Rent shortfall:** Did she skip payments entirely? Did she pay late and you covered the gap to avoid a late fee? Did you pay her portion because she moved out early?
- **Utilities:** Electricity, gas, water, internet, streaming services, phone plans—anything where you paid for both of you.
- **Shared household expenses:** Groceries, cleaning supplies, basic necessities you purchased for the apartment that she benefited from.

- **Damage or repairs:** Anything she broke, stained, or caused that came out of your pocket.
- **Other financial obligations:** Anything in your roommate agreement, sublease terms, or verbal agreement that she failed to meet.

Step 2: Assign Dollar Amounts to Each Item

For each entry, write down the specific amount. If it's a recurring expense (like monthly utilities), multiply by the number of months she didn't pay.

Example:

- March rent shortfall: \$850
- April rent shortfall: \$850
- May rent shortfall: \$850
- Internet (March–May): \$120
- Electric (March–May): \$89
- Broken bathroom mirror replacement: \$67
- **Total:** \$2,826

Step 3: Categorize Each Item by Documentation Strength

This is the step most people skip, and it's the difference between a winning case and a frustrating loss.

For each line item, mark it as one of the following:

- **Documentable:** You have a receipt, transaction record, written agreement, or bank statement that proves this amount.
- **Partially documentable:** You have some evidence but not complete proof. Maybe you have a Venmo screenshot of one payment but not the others.
- **Estimate-only:** This is your word against theirs, with no supporting documentation.

Documentable claims are your foundation. These are the items you can prove to a judge without question.

Partially documentable claims are still worth including, but you need to be realistic about their strength. A judge will weigh them, but they may not carry full value.

Estimate-only claims are problematic. You might feel confident that you paid for X, Y, and Z, but if you can't prove it, you're relying on the judge's belief in your credibility over theirs. That's a gamble. Consider whether the claim is significant enough to risk it, or whether you're better off leaving it off the filing and focusing on what you can actually prove.

Step 4: Check the Statute of Limitations

This is non-negotiable. Every state sets a time limit on how far back you can claim damages in small claims court. Miss that window, and your claim gets dismissed before anyone even looks at the evidence.

Statute of limitations for verbal agreements (open accounts):

Typically 2–4 years, depending on the state. If you never had a written lease or sublease agreement, this is your relevant timeline.

Statute of limitations for written agreements (contracts):

Typically 4–10 years, depending on the state. If you have a signed lease, sublease agreement, or any written document outlining payment terms, you may have more time.

Statute of limitations for property damage: Typically 2–6 years, depending on whether it's categorized as property damage or breach of contract.

To find your state's specific limits, search "[your state] small claims statute of limitations." Most court websites have this information readily available. If you can't find it, call the small claims court clerk in your county—they can tell you the deadlines that apply to your situation.

Step 5: Calculate Your Total Claim

Add up your documentable and partially documentable items. This is your filing number—the amount you'll enter on your small claims forms.

Here's a crucial nuance: **Know your state's limit on small claims jurisdiction.** Most states cap small claims awards at \$2,500 to \$15,000, depending on whether you're in a limited jurisdiction or general jurisdiction track. If your total exceeds the limit, you may need to file in a higher court or trim your claim. We'll cover this in detail in Chapter 3.

Key Takeaway: Your claim is only as strong as your documentation. Spend time now organizing your evidence, categorizing your damages, and checking your legal deadlines. This is the foundation everything else gets built on.



Chapter 2: Write the Demand Letter That Actually Lands

Before you file anything with the court, you need to send a demand letter. This isn't just a courtesy—it's a strategic move that serves three purposes:

- 1. It starts the official clock.** In many states, you're required to send written notice before filing. The demand letter satisfies this requirement.
- 2. It creates a paper trail.** A properly sent demand letter establishes that you made a good-faith effort to resolve this before involving the court system. Judges notice this.
- 3. It sometimes works.** If your roommate is acting out of spite rather than genuine inability to pay, a formal legal notice can be the wake-up call that makes them reconsider. Some people will pay when they realize there's paperwork involved. Others won't—but the letter establishes your position regardless.

What Your Demand Letter Must Include

A demand letter is not a casual email or a text message. It needs to be formal, specific, and sent in a way that creates a legal record of delivery.

Your letter should contain the following elements:

Your name and contact information (top of letter)

Date

Recipient's name and last known address (include any forwarding address if they've moved)

Re: Formal Demand for Payment of Outstanding Debt

Opening statement: State that you are writing to demand payment for money owed as a result of unpaid rent, shared expenses, or other financial obligations incurred during your shared tenancy.

Specific amount demanded: Write the exact dollar figure in both words and numbers. "Two thousand, six hundred and forty-seven dollars (\$2,647.00)"

Itemized breakdown: List each category of debt with its corresponding amount. This mirrors the worksheet you built in Chapter 1.

Basis for the claim: Briefly explain why this money is owed. Reference your roommate agreement, lease terms, verbal understanding, or the specific circumstances (e.g., "As documented in our text exchange dated March 15th, you agreed to cover your portion of March rent. Payment was never received.")

Deadline for payment: Give them 30 days. This is standard and gives them a reasonable window without extending your timeline unnecessarily. "Payment must be received by [DATE 30 DAYS FROM NOW]."

Consequence of non-payment: State clearly that you will file a claim in small claims court if payment is not received by the deadline. You don't need to be hostile—simply factual. "If payment is not received by this date, I will file a claim in [County] Small Claims Court to recover the amounts owed, along with applicable filing fees and any associated costs."

Payment method: Include how you expect to receive payment (check, Venmo, etc.) and provide the relevant details.

Closing: Keep it professional. "Please treat this matter with the urgency it deserves."

Your signature

Send it via certified mail with return receipt. This is not optional. Certified mail creates a legal record that the letter was delivered to a specific address on a specific date. If your roommate refuses delivery or claims they never received it, you have proof. Return receipt requests typically cost \$4–5 but are worth every penny.

Keep a copy for your records. Photograph the receipt after you mail it.

What to Do If They Don't Respond

If 30 days pass and you receive no payment and no meaningful response, you have your answer. The demand letter either worked or it didn't—and now you know which way to move.

Key Takeaway: Your demand letter is the foundation of your legal position. Send it properly, keep the receipt, and give it the full 30 days. If it works, you're done. If it doesn't, you have the paper trail you need to proceed.



Chapter 3: The Decision Framework: Is Small Claims Actually Worth It?

This is the question that determines whether you spend the next several weeks on this or cut your losses. Let's be honest about the trade-offs.

What small claims court gives you:

- A legal judgment that establishes you were right and they owed you money
- The ability to enforce that judgment against their wages, bank accounts, or property
- The satisfaction of a judge agreeing with you in a formal setting

What small claims court does not give you:

- An immediate payment. A judgment is a piece of paper, not a check.

- A guarantee of collection. You still have to collect, and some people are judgment-proof.

Questions to Ask Before You File

1. What is your state's small claims limit?

As mentioned earlier, most states cap small claims at \$2,500–\$15,000. If your claim exceeds the limit, you may need to file in a higher court (which involves more complexity and often requires a lawyer). If your claim is under the limit, you can proceed on your own.

2. How much is the filing fee in your county?

Filing fees typically range from \$30–\$150 depending on the claim amount and the state. This is a sunk cost—you pay it when you file, regardless of outcome. Budget for this.

3. What's the time investment?

You'll need to:

- Gather and organize documentation (4–8 hours)
- Complete the filing paperwork (1–2 hours)
- Serve the defendant (may require a process server or sheriff, \$20–\$75)
- Attend the hearing (half a day)

Total investment: roughly 8–15 hours spread over 4–8 weeks. Is that worth it for your claim amount? Run the math. If you claim is \$1,200 and the filing fee is \$50, you're still ahead if you win—but only if you collect.

4. Can you realistically collect?

This is the critical question that most people overlook.

A judgment gives you legal authority to collect. It does not guarantee that you can actually collect. Here's what you need to assess:

Do they have a job? If yes, you can potentially garnish wages. You need to know where they work—this requires investigation.

Do they have a bank account? If yes, you can potentially levy the account (freeze funds). This requires knowing which bank.

Do they own property? If yes, you can place a lien on it. This is more complex but possible.

Are they completely judgment-proof? If they have no job, no bank account, no assets, and no income, a judgment is a piece of paper. You can still file to establish the debt (it doesn't disappear) but you may never collect.

5. Is the relationship worth preserving?

Sometimes the answer is yes. If this is a close friend or family member and there's a path to resolution that doesn't involve court, explore it. But if they've made it clear that spite is driving their behavior and they have no intention of paying, small claims court is your best tool.

The Decision Matrix

FACTOR	FILE	DON'T FILE
Claim amount > \$500	✓	
Claim amount < \$200		× (fees may exceed recovery)
Strong documentation	✓	
Estimate-only claims	Reconsider	
Respondent has income/assets	✓	
Respondent appears judgment-proof	Reconsider	
State limit exceeds your claim	✓	
Your claim exceeds state limit	Consult a lawyer	

Key Takeaway: Small claims court is worth it if you have a documented claim, a realistic path to collection, and a respondent who has assets or income to draw from. It's a weaker investment if you're relying on estimate-only claims or if your roommate is judgment-proof. Make this call based on facts, not feelings.



Part 2: Evidence Gathering & Documentation

Your claim lives or dies by your evidence. This part teaches you how to build a file that would hold up under scrutiny—the kind of documentation that makes a judge nod along and rule in your favor.

Chapter 4: Build Your Financial Paper Trail

In small claims court, you're not just telling a story. You're presenting evidence. The judge doesn't know you or your roommate. They don't know what really happened. They only know what you can prove. So let's make sure you can prove it.

What Counts as Evidence

Strong evidence categories:

- **Written agreements:** Your lease, sublease agreement, roommate contract, or any document where the other person agreed to pay something. Even a text message where they acknowledged a payment obligation counts.
- **Transaction records:** Bank statements, credit card statements, Venmo/Zelle/CashApp transaction histories showing payments made or not made. Screenshot these and save them in multiple places.
- **Written communications:** Emails, text messages, or any other documented conversation where they acknowledged owing money, agreed to a payment plan, or failed to respond to a payment request.
- **Photographs:** Any visual evidence of damage, unpaid items, or the condition of shared spaces. Include timestamps if possible.
- **Witness statements:** If anyone else lived in the apartment or witnessed relevant conversations, their written statement can support your account. This is especially useful for he-said-she-said situations.

Weaker but still useful evidence:

- **Your own records:** A contemporaneous journal or notes you kept at the time of events can support your testimony, even without corroboration.

- **Screenshots of digital conversations:** WhatsApp, iMessage, Facebook Messenger—all of it. Screenshot with the full context visible (not just the relevant message, but the conversation thread).

How to Organize Your Evidence

Don't just throw everything in a folder. Organize it by claim category so you can present it clearly.

Create a folder structure:

```
Roommate Case - [Your Name] v. [Their Name]
```

```
├─ 01_Rent
```

```
|   └─ Lease_agreement.pdf
```

```
|   └─ Monthly_payment_records.xlsx
```

```
|   └─ March_rent_shortfall.pdf
```

```
|   └─ April_rent_shortfall.pdf
```

```
|   └─ May_rent_shortfall.pdf
```

```
├─ 02_Uutilities
```

```
|   └─ Internet_bills_Mar_May.pdf
```

```
|   └─ Electric_bills_Mar_May.pdf
```

```
├─ 03_Damages
```

```
|   └─ Mirror_receipt.pdf
```

```
|   └─ Photo_of_damage.jpg
```

```
├─ 04_Written_Communications
```

```
|   └─ Text_exchange_re_rent.pdf
```

```
|   └─ Email_re_payment_arrangements.pdf
```

```
└─ 05_Demand_Letter
```

```
    └─ Demand_letter_signed.pdf
```

```
    └─ Certified_mail_receipt.pdf
```

This organization serves two purposes: it helps you prepare your case, and it helps you present it to the judge in a logical, professional way.

How to Preserve Digital Evidence

Text messages disappear. Screenshots get lost. Digital evidence requires extra care.

Rule 1: Screenshot everything immediately. Don't assume you'll remember to do it later. Screenshot the conversation now, then save it in your organized folder.

Rule 2: Capture full context. Don't screenshot just the key message. Capture the full conversation thread so the judge can see the context. Include the contact name, the date range visible, and enough messages to tell the story.

Rule 3: Save in multiple formats. Cloud storage, external drive, email to yourself—don't rely on one copy. Evidence disappears when phones break or accounts get deleted.

Rule 4: Print what you can. Judges can review paper documents faster than they can scroll through a phone. Print your most important evidence and bring physical copies to the hearing, plus a backup set on a USB drive.

What to Do If You Don't Have Strong Documentation

Not every situation is perfectly documented. If you're missing key records, here's how to handle it:

- **Focus on what you do have.** Don't try to fake or embellish. Present your strongest evidence and be honest about gaps.
- **Use circumstantial evidence.** Pattern of behavior can be persuasive. If you never missed a payment in three years and suddenly stopped after your roommate moved out, that's relevant.
- **Be honest about estimates.** If a claim is estimate-only, say so. "I'm claiming \$200 for my share of groceries over three months based on what I typically spent." Judges respect honesty more than inflated claims.
- **Consider whether to include weak claims.** Every claim you file is subject to scrutiny. If a claim is entirely unsupported, it may undermine your credibility on stronger claims. Assess carefully.

The Documentation Checklist

Before you file, confirm you have:

- ☐ Lease or sublease agreement (signed copy)
- ☐ Any written roommate agreement
- ☐ Bank statements showing rent payments (yours and theirs, if available)
- ☐ Venmo/Zelle/CashApp transaction history
- ☐ Utility bills in your name (showing amounts you paid)

- [] Any written communication about the debt
- [] Demand letter copy and certified mail receipt
- [] Photos of any damage or unpaid items
- [] Witness statements (if applicable)

Key Takeaway: Your evidence file is your entire case. Build it now, organize it thoroughly, and back it up in multiple formats. A well-documented claim with clear records will always outperform a vague claim with spotty evidence.



Part 3: Filing, Serving, and the Hearing

You have your documentation. You've sent your demand letter. It didn't work. Now it's time to file.



Chapter 5: Filing Your Claim — Paperwork, Fees, and the Process

Filing a small claims case is not complicated, but it requires attention to detail. One mistake on a form can delay your case by weeks. Let's do it right.

Step 1: Identify the Correct Court

Small claims courts are typically housed within county-level circuit courts, district courts, or municipal courts, depending on the state. You need to file in the county where:

- The rental property is located (the most common choice), OR
- The defendant lives or works (in some states)

Check your state's judicial website for the specific court that handles small claims in your county.

Step 2: Get the Required Forms

Most courts have small claims forms available on their website. You may need:

- A **Plaintiff's Claim** form (also called a Statement of Claim or Complaint): This is where you write out your claim, the amount you're seeking, and the basis for it.
- A **Summons** form: This notifies the defendant of the claim and the hearing date.

Download the forms from your court's website, or pick them up in person at the clerk's office.

Step 3: Fill Out the Forms Completely

The forms will ask for:

- Your name and contact information (plaintiff)
- The defendant's name and last known address
- The amount you're claiming (itemized)
- A brief description of what happened
- Any documentation you're attaching

Be precise. Don't exaggerate. Write the exact amounts you documented in your Debt Audit Worksheet. If you're claiming \$2,647.00, write \$2,647.00—not "approximately \$2,600."

Step 4: Calculate Your Filing Fee

Filing fees are paid at time of submission. They typically range from \$30–\$150 depending on:

- The amount of your claim
- Your state's fee schedule
- Whether you qualify for a fee waiver (if you're low-income)

Fee waivers are available in most states if you meet income requirements. If you're struggling financially, ask the clerk about "in forma pauperis" status.

Step 5: Submit Your Forms

You can typically file:

- **In person:** Bring your forms and payment to the clerk's office. You'll receive a hearing date before you leave.
- **By mail:** Send completed forms and payment to the clerk's office. You'll receive confirmation and hearing information by return mail.
- **Online:** Many states now offer e-filing for small claims. Check your court's website.

Step 6: Note Your Hearing Date

Once filed, you'll receive a hearing date. This is typically 4–8 weeks from filing, depending on the court's calendar and your county's backlog.

Mark it in your calendar immediately. If you miss the hearing, your case gets dismissed and you may need to refile.

Common Mistakes to Avoid

- **Filing in the wrong county:** If you file in the wrong court, the defendant can have the case dismissed or transferred. Double-check the jurisdiction rules.
- **Missing information on forms:** Incomplete forms get rejected. Make sure every field is filled out, even if the answer is "N/A."
- **Filing for more than the limit:** If your claim exceeds the small claims limit in your state, the clerk may reject it or you'll need to file in a higher court.
- **Forgetting to attach documentation:** Some courts require copies of key documents attached to your filing. Check the requirements.

Key Takeaway: Filing is straightforward if you complete the forms carefully and submit them to the correct court. Pay the filing fee (or request a waiver), note your hearing date, and move on to serving the defendant.

Chapter 6: Serving the Defendant — Getting Them Into the Room

Filing alone isn't enough. You have to prove to the court that the defendant received notice of the claim. This is called "service of process," and it's a legal requirement, not an optional step.

Why Service Matters

If the defendant doesn't receive proper notice, the case can't proceed. They could claim they never knew about the hearing and request a postponement—or in some cases, the judgment could be voided on appeal. Service is your proof that they had the opportunity to show up.

Acceptable Methods of Service

Each state has rules about which service methods are legally valid. The most common options:

Personal service: A process server or sheriff's deputy physically hands the summons to the defendant. This is the most reliable method and provides proof of delivery. Cost: \$40–\$100 depending on the provider.

Certified mail with return receipt: Many states allow this as an alternative to personal service. You send the summons via certified mail (restricted delivery) and keep the signed receipt as proof. This is cheaper but can be tricky if the defendant refuses to sign or claims they didn't receive it.

Substituted service: If personal service fails (defendant avoids the process server), you may be able to serve them by leaving documents with a responsible adult at their home or workplace, then mailing a copy. This requires court approval and specific procedures.

Service by publication: If you genuinely cannot locate the defendant after reasonable efforts, some states allow service by publishing a notice in a local newspaper. This is rare and usually requires a court order.

Who Can Serve?

You can hire a professional process server (search "process server [your county]" online), use a sheriff's deputy (contact the county sheriff's office), or in some states, serve it yourself if you're not a party to the case (check your local rules).

What Happens After Service

Once service is completed, you need to file a "Proof of Service" form with the court. This is your declaration that the defendant received notice. Without this form on file, your hearing may be delayed or your judgment may not be enforceable.

The process server or sheriff will typically provide you with the proof of service document after completing delivery. File it with the court clerk promptly.

Dealing With a Difficult-to-Serve Defendant

If the defendant is actively avoiding service:

- Document every attempt. Keep records of dates, times, locations, and what happened.
- Use a professional process server. They have experience with evasive respondents.
- Ask the court about substituted service if personal service has failed multiple times.
- In extreme cases, consult a lawyer about options.

Key Takeaway: Service of process is a legal requirement that must be completed properly. Use certified mail or a professional process server, file your proof of service immediately, and keep records of every attempt. Don't let a service failure derail your case.

Chapter 7: Preparing for and Winning Your Hearing

You filed. You served. The hearing date is set. Now it's time to prepare your presentation.

How to Prepare

Small claims hearings are designed to be accessible to non-lawyers. The judge knows you're not a lawyer. They're looking for a clear, honest presentation of what happened and why you deserve the money you're claiming.

Review your evidence. Go through your organized file and understand every document. You should be able to explain each piece of evidence and what it proves.

Organize your presentation. You won't give a formal opening statement in small claims court—you'll simply tell your story and present documents. Structure it as:

1. Who you are and what the dispute is about
2. The specific amounts owed and why
3. Your documentation supporting each claim
4. Any attempts you made to resolve this before filing
5. Your request (the amount you're seeking)

Anticipate the other side. The defendant may show up and dispute your claims. Think about what they'll say and how you'll respond. Do they have any valid counterarguments? Can you counter them with evidence?

Know your timeline. Review your statute of limitations check. Be ready to explain why each claim is within the legal window.

What to Bring to the Hearing

Bring at least three copies of everything:

- Your key documents (printed, not on your phone)
- Your itemized claim worksheet

- Your demand letter and proof of service
- Any photos or visual evidence (printed)
- A pen and notepad for notes
- Your filing receipt and any court correspondence

Bring originals plus two copies (one for the judge, one for the defendant, one for yourself).

What Happens at the Hearing

Hearings are typically short—15 to 30 minutes per case. The judge will:

1. Call the case and confirm both parties are present
2. Ask you to present your claim
3. Allow the defendant to respond
4. Ask clarifying questions
5. Make a decision (sometimes immediately, sometimes within a few days)

Be respectful, stay calm, and stick to the facts. Don't make it personal. The judge doesn't care that your roommate is spiteful or that her behavior hurt you—they care about who owes what to whom based on evidence.

Common Pitfalls to Avoid

- **Being unprepared:** Show up knowing your case cold. Hesitation or confusion undermines your credibility.
- **Exaggerating or lying:** If a claim is weak, acknowledge it honestly. Judges lose respect for claimants who inflate their damages.
- **Being hostile:** Stay professional. Attacking the defendant's character will hurt you more than it helps.
- **Forgetting key documents:** If you need a receipt and don't have it, your claim weakens. Come prepared.
- **Missing the hearing:** This is fatal. Set multiple reminders. If you absolutely cannot attend, contact the court immediately to request a postponement—but do not assume it will be granted.

What a Win Looks Like

If the judge rules in your favor, they'll issue a judgment for the specific amount you proved you were owed. This may be the full amount, a reduced amount, or in some cases, nothing (if your evidence doesn't support the claim). The judgment is not a payment—it's a legal recognition that you are owed that money.

The judge will typically sign a Judgment Form that states the amount and any payment terms. Keep this document safe. It is your enforcement tool.

Key Takeaway: Prepare thoroughly, present your evidence clearly, and stay professional. Small claims judges are looking for honest, organized claimants with clear documentation. Give them that and you put yourself in the best position to win.



Part 4: From Judgment to Payment

A judgment is the beginning of the end, not the end itself. This part covers how to actually collect the money you're owed—because a judgment against a person who refuses to pay is just paper without the right enforcement steps.



Chapter 8: Enforcing Your Judgment — Getting the Money

Here's the reality that many people don't understand: winning in small claims court is the easy part. Collecting is where the work happens.

A judgment gives you legal authority to pursue collection. It does not automatically extract money from the defendant's bank account. You have to take additional steps.

Option 1: Bank Levy

If you know which bank the defendant uses, you can file a writ of execution with the court and present it to the bank to freeze and seize funds from their account.

Requirements:

- You need to know the bank name and branch location
- You need to file additional paperwork (the specific form depends on your state) and pay a filing fee
- The bank will hold funds up to the judgment amount if available

Limitations:

- If the account has a low balance or no funds, you get nothing
- You may need to renew the writ if the account doesn't have enough at the time of levy

Option 2: Wage Garnishment

If the defendant is employed, you can request a wage garnishment order. This requires the employer to withhold a portion of each paycheck and send it to you until the debt is paid.

Requirements:

- You need to know where they work (employer name and address)
- You file a garnishment request with the court
- The court issues an order that you serve on the employer

Limitations:

- Garnishment amounts are typically capped (often 25% of disposable income)
- If they change jobs, you need to locate the new employer
- Self-employed people are very difficult to garnish

Option 3: Property Lien

If the defendant owns real property (a house or land), you can place a lien on it. This doesn't get you immediate payment, but it means that if they sell the property, you get paid from the proceeds.

Requirements:

- You need to know if they own property and where
- You file a lien with the county recorder's office
- You may need to file additional paperwork with the court

Limitations:

- Liens are slow—they only pay out when the property is sold
- You may not see payment for years
- If they have a mortgage, the lien may be subordinate to the mortgage lender

Option 4: Payment Agreement

Sometimes the simplest path is the best one. If the defendant is willing to negotiate, you can accept a payment plan rather than pursuing aggressive enforcement.

Requirements:

- The defendant must be willing to engage
- You should get the agreement in writing
- You should include a clause that if they miss a payment, the full remaining balance becomes immediately due

Benefits:

- Faster resolution than court enforcement
- Preserves the relationship (if that matters to you)
- Low cost

Limitations:

- Voluntary compliance depends on their good faith
- If they miss payments, you have to go back to enforcement

Option 5: Judgment Collections Agency

You can sell your judgment to a collections agency. They pay you a percentage of the judgment value upfront (typically 10–25%) and then pursue collection on their own.

Benefits:

- You get some money immediately
- You hand off the difficult work of collection

Limitations:

- You only get a fraction of what you're owed
- Agencies often use aggressive tactics that you can't control

What If They Have No Assets?

Some people genuinely have nothing to collect from. They don't have a bank account, they're unemployed, they rent with no assets, and they're judgment-proof.

In this situation, your options are limited. You can:

- **Renew the judgment:** Judgments can often be renewed before they expire (most states allow 5–20 year renewal periods). Their financial situation may change.
- **Wait:** People get jobs, open bank accounts, and inherit money. Your judgment stays on record until it's satisfied or expires.
- **Accept a loss:** Sometimes the math doesn't work. You spent \$75 filing, \$60 serving, and weeks of your time, and you get nothing. This happens. Decide if further effort is worth it.

Key Takeaway: Collecting a judgment requires active steps.

Evaluate your debtor's financial situation, choose the appropriate enforcement method (bank levy, wage garnishment, property lien), and be prepared to navigate a process that takes time. If they're completely judgment-proof, consider whether further enforcement is worth your effort.

Chapter 9: Protecting Yourself Moving Forward

You got your judgment—or you're in the process of collecting it. Either way, this situation is a lesson. Let's make sure you don't repeat it.

For Future Roommate Arrangements

- **Always have a written agreement.** No matter how much you trust someone, a written roommate agreement protects you both. Include specific terms for rent, utilities, shared expenses, what happens if someone wants to leave, and how disputes get resolved.
- **Keep records of every payment.** Venmo, Zelle, bank transfers—document everything. A paper trail protects you in any future dispute.
- **Consider requiring a security deposit.** A deposit provides a buffer if someone stops paying. Make the terms clear in writing.
- **Know your local laws.** Tenant rights vary by state and city. Understand what you're dealing with before you rent to anyone.

If You're Still Living With the Problem

- **Document everything.** If your former roommate is still in the space or their stuff is still there, photograph the condition. Record any communications. Build your file.
- **Don't retaliate.** It's tempting to play hardball in response to their hardball, but that can complicate your legal position. Stay professional.
- **Know when to cut losses.** Some people won't pay regardless of what you do. If the math doesn't work—filing fees exceed likely recovery—consider whether it's worth continuing.

The Emotional Side

Let's be honest: roommate debt disputes are exhausting. They cost you money, time, and mental energy. They turn your home into a battlefield. And they often involve people you once trusted.

It's normal to feel frustrated, angry, or even depressed about this situation. If you find yourself obsessing over it, struggling to move on, or feeling helpless, consider talking to a therapist or counselor. Money disputes can feel disproportionately personal because they touch on trust, fairness, and your sense of control over your own life.

You did the right thing by pursuing this. You used the system as designed. Whether you collect every dollar or not, you stood up for yourself and took action. That matters.

Key Takeaway: Your past situation taught you what to do differently in the future. Write a roommate agreement, document payments, and protect yourself before you ever need to. And if you're still in the middle of this fight, stay professional, keep records, and don't let frustration drive you to actions that hurt your legal position.



Conclusion

You came into this guide with a roommate who wouldn't pay, a living room you couldn't use, and a sense that there was nothing you could do about it. You leave this guide knowing exactly what steps to take—and confident that the system has a door for exactly this situation.

What you now know:

- **How to calculate what you're actually owed**, with documentation to back it up
- **How to write a demand letter** that starts the legal clock and creates a paper trail
- **Whether small claims court is worth it** for your specific situation
- **How to build a paper trail** that holds up in any hearing

- **How to file your claim** in the correct court with the right paperwork
- **How to serve the defendant** and prove they received notice
- **How to present your case** clearly and professionally to win the judgment
- **How to enforce the judgment** using bank levies, wage garnishment, or property liens
- **How to protect yourself** in future roommate situations

This is a system that works. People use it every day to recover money they're owed. Your roommate doesn't want to show up to court. Your judgment will motivate payment. And your persistence will pay off.

Your next step:

The best time to start is right now. Calculate your total using the Debt Audit Worksheet. Pull your transaction records. Send your demand letter.

Every day you wait is a day your statute of limitations clock keeps running. Every week you delay is a week your evidence gets harder to find.

You're not helpless. You never were.

The system is designed for people exactly like you—people who did everything right, got treated unfairly, and deserve a remedy. Use it.



If you haven't already, download the companion Action Checklist — your step-by-step companion document that walks you through every phase of this process with checkboxes, timelines, and template reminders. It pairs with this guide to give you a complete, actionable roadmap from first step to payment received.